



CHAPTER vii.

An Act to confer further powers on the South Suburban Gas Company and for other purposes.

[13th May 1948.]

WHEREAS the South Suburban Gas Company (in this Preamble. Act referred to as "the Company") were originally incorporated by the Crystal Palace District Gas Company's 21 & 22 Vict. Act 1858 by the name of the Crystal Palace District Gas c. cxxix. Company:

And whereas the Acts relating to the Company were consolidated by the South Suburban Gas Act 1928 and under that 18 & 19 Geo. 5. Act and subsequent Acts the Company are supplying gas in c. lxxx. an area of supply which comprises parts of the counties of London Kent and Surrey:

And whereas by section 2 of the South Suburban Gas Act 9 & 10 Geo. 6. 1945 it is enacted that the Company shall not later than in the c. vi. session 1948 promote a Bill in Parliament proposing a revision of the basic price fixed by the South Suburban Gas Act 1928 or giving an opportunity for such revision to be made:

And whereas it is expedient that further powers be conferred on the Company as in this Act contained and that the other provisions of this Act be enacted:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1.—(1) This Act may be cited as the South Suburban Gas Act 1948.

(2) The South Suburban Gas Acts 1928 to 1945 and this Act may be cited together as the South Suburban Gas Acts 1928 to 1948.

Dwelling-
houses for
employees
offices
showrooms
&c.

2.—(1) The Company may purchase or take on lease houses cottages and other buildings for employees and offices showrooms and other buildings for the purposes of their undertaking and may erect fit up maintain and let any such buildings upon any lands for the time being held by the Company for the purposes of the undertaking.

(2) Nothing in this section shall prejudice or affect the operation of the London Building Acts 1930 to 1939 or any byelaw or regulation in force thereunder.

Saving for
Town and
Country
Planning.
22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.
7 & 8 Geo. 6.
c. 47.
9 & 10 Geo. 6.
c. 68.
10 & 11 Geo. 6.
c. 51.

3.—(1) The provisions of the Town and Country Planning Acts 1932 and 1943 the Town and Country Planning Act 1944 and the New Towns Act 1946 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts as far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

(2) This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Closing of
transfer books.

4.—(1) The directors of the Company may close any register of transfers for a period not exceeding one month immediately previous to the payment of any interim dividend or to the date on which any dividend or any interest on the stock to which the register relates shall be payable and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper circulating within the limits within which the Company are for the time being authorised to supply gas and any transfer received by the Company for registration during the time when the register is so closed shall as between the Company and the persons claiming under the same but not otherwise be considered as made subsequently to the expiration of the period for which the register was closed.

(2) Section 41 (Closing of transfer books) of the South Suburban Gas Act 1928 is hereby repealed.

5. The Third Schedule to the South Suburban Gas Act 1935 so far as it relates to the differential price which may be charged in so much of the urban district of Tonbridge as prior to the coming into operation of the Kent Review Order 1934 formed parts of the parishes of Hadlow Hildenborough and Tonbridge Rural in the rural district of Tonbridge shall be read and have effect as if the words " but shall in no case exceed sixteen pence per therm " were omitted therefrom.

Amendment
of Third
Schedule
to South
Suburban Gas
Act 1935.
26 Geo. 5. &
1 Edw. 8.
c. cvi.

6.—(1) The Company shall not later than in the session 1953 promote a Bill in Parliament proposing a revision of the basic price fixed by the South Suburban Gas Act 1928 or giving an opportunity for such revision to be made. The council of any county and of any borough or urban district within or partly within the limits within which the Company are for the time being authorised to supply gas shall (subject to their complying with any relevant statutory requirements and standing orders of each House of Parliament) be entitled to be heard on such Bill.

Company
to promote
future Bill.

(2) Section 2 (Company to promote future Bill) of the South Suburban Gas Act 1945 is hereby repealed.

7. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company out of revenue.

Costs of Act.

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*South Suburban Gas
Act, 1948.*

II & 12 GEO. 6.

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